

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KAMI KINKAID,

Petitioner

VS.

RICHARD KIM,

Respondent

) Case Number: FDI-25-800862

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JERILYN BORACK

REQUEST FOR ORDER CHILD SUPPORT, & ALLOCATION OF 4062/4063 COSTS PER FCS 4061

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kami Kinkaid and Respondent Richard Kim. They share two minor children: Tatum (DOB: 5/28/11) and Nelson (DOB: 4/19/15). There are no prior child custody or child support orders in this case.
- 2) On 1/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/13/08 and date of separation is March 2023 for a marriage of 14 years and 7 months.
- 3) On 3/25/25, Respondent filed a Response and Request for Dissolution also indicating the date of marriage is 9/13/08 and date of separation is March 2023 for a marriage of 14 years and 7 months.
- 4) On 3/19/26, Petitioner filed an Income and Expense Declaration.
- 5) On 3/27/26, Petitioner filed a Request for Order seeking guideline child support and allocation of Family Code section 4062 and 4063 costs pursuant to Family Code section 4061. Petitioner asserts she has a 95% timeshare with the minor children and lost her job, so she needs

Respondent to pay child support and contribute to the minor children's expenses including private school tuition and extracurricular expenses.

6) On 5/14/26, Respondent filed an Income and Expense Declaration.

7) On 5/15/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent asserts that Petitioner has a significantly higher earning capacity than Respondent. Respondent requests the Court issue a seek work order on Petitioner and impute her with minimum wage income as Respondent believes Petitioner is consulting as an independent contractor. Respondent additionally requests that the children's expenses be split evenly between the parties, which Respondent asserts is how the expenses were split historically. Respondent states he has significant financial debt.

8) On 5/19/26, Respondent filed a Request for Order seeking joint legal and joint physical custody and a week-on/week-off parenting timeshare. This matter is set for hearing on 7/6/26.

B. Findings and Order

1) The Court finds good cause to continue Petitioner's Request for Order seeking guideline child support and allocation of Family Code section 4062 and 4063 costs pursuant to Family Code section 4061 given that there is an initial child custody and visitation hearing on 7/6/26; therefore, the parenting timeshare may change.

2) Nevertheless, the Court further finds good cause to issue an interim child support order since Mother became unemployed in February 2026.

3) Petitioner's request for guideline child support is therefore GRANTED effective 3/27/26 (i.e., the date Mother filed the Request for Order).

4) In accordance with the XSpouse report attached hereto and incorporated herein, Respondent shall pay Petitioner \$1,891 in guideline monthly child support by the 1st of every month commencing 6/1/26.

5) The XSpouse report is based on the following findings:

a. Per Petitioner's Income and Expense Declaration filed 3/19/26, Petitioner receives \$1,950 in monthly unemployment.

b. Per Respondent's Income and Expense Declaration filed 5/14/26, Respondent: (a) earns \$5,000 in average monthly income and \$1,481 in average monthly self-employment

1 income; (b) pays \$500 in average monthly health insurance premiums; and (c) pays \$957
2 in property taxes and \$1,250 in deductible interest expenses.

3 6) The Court reserves jurisdiction over:

- 4 a. The child support order retroactive to 1/24/25 (i.e., the filing date of the petition);
5 b. Any child support arrears Respondent may owe to Petitioner;
6 c. Respondent's request the Court issue a seek work order on Petitioner;
7 d. Respondent's request for imputation of minimum wage income to Petitioner; and
8 e. Petitioner's request for allocation of Family Code section 4062 and 4063 costs pursuant
9 to Family Code section 4061.

10 7) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

11 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).

26-05-28 XSpouse Kincaid v.
Kim 800862

2026		Xspouse 2026-1-CA				Monthly Figures			Monthly Figures			Cash Flow		
		Father	Mother					2026				Guideline Proposed		
Fixed Shares		0	2											
Number of children	Percent	5.00%	0.00%											
time with NCP	Filing status	SINGLE	HH/MLA											
Number of exemptions		1	3											
Wages and salary		5000	0											
Self employed income		1481	0											
Other taxable income		0	1950											
TANF CS received		0	0											
Other nontaxable income		0	0											
New spouse income		0	0											
Employee 401-k contribution		0	0											
Adjustments to income		0	0											
SS paid prev marriage		0	0											
CS paid prev marriage		0	0											
Health insurance		500	0											
Other medical expenses		0	0											
Property tax expenses		957	0											
Ded interest expense		1250	0											
Contribution deduction		0	0											
Misc tax deductions		0	0											
Qualified business income deduction		0	0											
Required union dues		0	0											
Mandatory retirement		0	0											
Hardship deduction		0	0											
Other GDL deductions		0	0											
Child care expenses		0	0											

Father pays Guideline CS, Proposed CS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		5 - 95	0	0	0 Father	1,891 Father	1,891 Father
	0000-00-00	5 - 95	0	0	0 Father	709 Father	709 Father
	0000-00-00	5 - 95	0	0	0 Father	1,182 Father	1,182 Father